04. Draft Order (Page 1 of 3)

Supreme Court of British Columbia â New Westminster No. NW-250981

SYNTHETIC TEST FIXTURE - all parties, counsel, addresses and figures are fictional. Not for filing.

FORM 35 (RULE 13-1 (1))

No. NW-250981
New Westminster Registry

IN THE SUPREME COURT OF BRITISH COLUMBIA

BETWEEN:
APEX STRUCTURES CORP.
PLAINTIFF / APPLICANT
AND:
CASCADE GENERAL CONTRACTING LTD.
DEFENDANT / RESPONDENT
AND:
PRO-TECH ROOFING SYSTEMS INC.
PROPOSED ADDED DEFENDANT / RESPONDENT

ORDER MADE AFTER APPLICATION

BEFORE AN ASSOCIATE JUDGE IN CHAMBERS) ON THURSDAY, THE 26TH DAY) OF NOVEMBER, 2026.

ON THE APPLICATION of the Plaintiff, Apex Structures Corp., coming on for hearing by video conference pursuant to Practice Direction 73 on this 26th day of November, 2026; AND ON HEARING Priya Anand, counsel for the Plaintiff, Robert Lindqvist, counsel for the Defendant, Cascade General Contracting Ltd., and Dana Okafor, counsel for the Proposed Added Defendant, Pro-Tech Roofing Systems

04. Draft Order (Page 2 of 3)

Inc.; AND ON READING the
materials filed herein, including the Notice of Application dated November
2, 2026, the Application
Response dated November 17, 2026, and the Affidavit #1 of Marcus Tremblay
sworn November 2, 2026, with
the exhibits attached thereto;

IT IS ORDERED THAT:

1. The Plaintiff is granted leave to amend the Notice of Civil Claim filed
March 4, 2026, in the form of
the Amended Notice of Civil Claim attached as Exhibit "A" to the
Affidavit #1 of Marcus Tremblay
(the "Amended Claim").

2. Pro-Tech Roofing Systems Inc. is added as a defendant to this action,
and the style of cause is amended
accordingly.

3. The Plaintiff shall serve the Amended Claim on Pro-Tech Roofing Systems
Inc. within seven (7) days of
the date of this Order.

4. Pro-Tech Roofing Systems Inc. shall file a Response to Civil Claim
within the time prescribed by
Supreme Court Civil Rule 3-3, running from the date of service of the
Amended Claim.

5. The Defendant, Cascade General Contracting Ltd., and Pro-Tech Roofing
Systems Inc. shall file any
amended Response to Civil Claim within thirty (30) days of service of
the Amended Claim.

04. Draft Order (Page 3 of 3)

Supreme Court of British Columbia â New Westminster No. NW-250981

6. Costs of this application shall be costs in the cause.

BY THE COURT.

_____

REGISTRAR /

ASSOCIATE JUDGE

APPROVED AS TO FORM:

_____

Counsel for the Plaintiff, Priya Anand

_____

Counsel for the Defendant, Robert Lindqvist

_____

Counsel for the Proposed Added Defendant, Dana Okafor